

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-07

Impact Products, LLC *et al.* v. CMA CGM S.A.

**RESPONDENT CMA CGM S.A.’S
MOTION FOR CONFIDENTIAL TREATMENT
OF EXHIBITS 1-6 TO ITS MOTION TO DISMISS**

Respondent CMA CGM S.A. (“CMA”), by counsel, pursuant to 46 C.F.R §§ 502.69 and 502.5(b), moves for confidential treatment of Exhibits 1 through 6 to CMA’s Motion to Dismiss, and states as follows in support thereof:

Exhibits 1 through 6 are CMA’s service contracts, which contain confidential, proprietary, and commercially sensitive pricing, rate, and other information. The terms of the service contracts cannot be ascertained through outside sources and the business information they contain would cause significant prejudice and harm to CMA if disclosed. Accordingly, they are subject to the “Confidential Information” designation in the Protective Order entered July 31, 2024, requiring CMA to file both public and confidential versions with its Motion to Dismiss.

For the foregoing reasons, CMA respectfully requests that:

1. Exhibits 1 through 6 to its Motion to Dismiss be kept confidential; and
2. CMA be allowed to submit both a confidential and a redacted public version of the material for which it seeks confidential protection pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: August 28, 2024

Respectfully submitted,

/s/ W. Ryan Snow

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CERTIFICATE OF SERVICE

I certify that on the 28th day of August 2024, a true copy of the foregoing was served by electronic mail on all counsel of record as follows:

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